

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

NATIYA SURIYA NAMESNY,

Petitioner

VS.

MARKUS JAN NAMESNY,

Respondent

) Case Number: FDI-23-797463

) Hearing Date: April 28, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: DONNA PETRE

REQUEST FOR ORDER OF VISITATION (PARENTING TIME); REQUEST FOR ORDER FOR
CHANGE OF CHILD CUSTODY AND VISITATION

TENTATIVE RULING

The parties are ordered to appear to address the following issues: (a) parenting schedule and monthly schedule and (b) Winter and Summer Break. The parties may appear in person in Department 404 or remotely by Zoom Video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

At the hearing, the Court also intends to make the following findings and orders:

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) On January 9, 2026, the Mother/Petitioner filed a Request for Order seeking a modification of the child custody and visitation order regarding the child Charlotte Suriya Namesny (DOB 09/16/2019)
- 2) Pursuant to the terms of a Marital Settlement Agreement dated December 29, 2023, the parents share joint legal and physical custody of their child. The agreement set out no specific parenting

1 schedule but rather the parents' agreement that 'they will work cooperatively' with a recognition
2 that "frequent and continuing association between themselves and their child is in the best
3 interests of the child."

4 3) On January 15, 2026, the Father/Respondent filed a Request for Order regarding Visitation. The
5 Father's request seeks, as does the mother, that the parents share joint legal and physical custody
6 of their child.

7 4) On February 6, 2026, the Father/Respondent filed a Responsive Declaration to the
8 Petitioner/Mother request re Visitation.

9 5) On February 6, 2026, the Mother/Petitioner filed a Response to the Petitioner's Request for
10 Orders re Visitation.

11 6) On February 11, 2026, the Petitioner/Mother filed a Reply Declaration in support of her Request
12 for a modification of Child Custody and Visitation.

13 7) On February 13, 2026, the Father/Respondent filed his Reply in support of his Request for order
14 re Visitation.

15 8) On February 24, 2026, the parties appeared and were referred to mediation with a return date of
16 April 28, 2028.

17 9) Both parties attended mediation on March 24, 2026.

18 10) On April 17, 2026, the Respondent/Father filed an updated declaration in support his request for
19 order.

20 11) On April 22, 2026, the Petitioner/other filed a Reply Declaration to the Respondent/Father's
21 updated Declaration of April 17, 2026.

22 12) The parties attended mediation and were unable to reach an agreement. The following is a
23 summary of the areas for discussion:

24 25 **Parenting Schedule**

26 Mother is requesting a 6/5 parenting schedule on a repeating eleven (11) day cycle. The minor
27 shall reside with mother for five (5) consecutive days, followed by five (6) consecutive days with
28 father, and the schedule shall repeat continuously.

1 Parenting time shall begin after school on the first day of each parent's custodial period. On non-
2 school days, exchanges shall occur at 9:00 a.m. at mother's residence.

3 4 **Monthly Scheduling**

5 Mother shall provide her work schedule to father by the 23rd of each month to assist with
6 coordinating parenting time. Father shall notify mother within three (3) days if the proposed
7 schedule does not work for him.

8 9 **Winter Break**

10 Mother is requesting ten (10) consecutive days of parenting time during winter break in even-
11 numbered years.

12 13 **Summer Break**

14 Mother shall have two (2) consecutive weeks of parenting time during the summer. Father shall
15 have two (2) consecutive weeks immediately following mother's time. After the initial four (4)
16 weeks, the regular 6/5 parenting schedule shall resume.

17 18 **Travel and Passport**

19 Father shall cooperate with mother in renewing the minor's passport.

20 Mother is requesting to be the holder of the minor's passport.

21 Mother may travel internationally with the minor, including travel to Thailand, and shall provide
22 father with all travel details, including flight information no later than ninety (90) days prior to
23 departure.

24 Each parent may travel with the minor up to two (2) times per year, for trips not to exceed
25 fourteen (14) days per trip.

26 27 **Education Expenses**

28 Father shall notify mother by the end of the minor's school year if he is unable to pay for the
29 minor's schooling.

1 **Tax Claim**

2 Mother is requesting to claim the minor as a dependent on her taxes each year.

3
4 **Childcare During Parenting Time**

5 If Father is unable to care for the minor during his parenting time, mother shall assist him with
6 vetting a nanny, at the father's expense. Parenting Schedule

7 Mother shall have two (2) weeks of parenting time with the minor during summer break. Said
8 weeks shall not be exercised consecutively.

9
10 **Emergency Childcare**

11 Mother shall be reasonably flexible with her work schedule, when possible, if father is
12 unavailable to care for the minor in emergency situations and mother is in town.

13
14 **Parenting Time**

15 Father is requesting a 6/4 parenting schedule on a repeating 10-day cycle. The minor shall reside
16 with father for six (6) consecutive days, followed by four (4) consecutive days with mother, and
17 this schedule shall repeat continuously.

18 When school is not in session, the parent beginning their custodial time shall pick up or drop off
19 the minor at the other parent's residence at 10:00 a.m., unless otherwise agreed.

20
21 **Monthly Scheduling**

22 Father shall provide Mother, by the 12th day of each month, with any dates he is unavailable to
23 care for the minor. Mother shall provide Father, by the 19th day of each month, with her work
24 schedule.

25
26 **Winter Break**

27 Father is requesting parenting time with the minor every year during winter break from the
28 commencement of the school break until December 26 at 7:00 p.m. Father shall transport the
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1 minor to mother's residence on December 26, and mother shall have parenting time from
2 December 26 at 7:00 p.m. until the conclusion of the school break.

3
4 **Summer Break**

5 Mother shall have two (2) weeks of parenting time with the minor during summer break. Said
6 weeks shall not be exercised consecutively.

7
8 **Emergency Childcare**

9 Mother shall be reasonably flexible with her work schedule, when possible, if father is
10 unavailable to care for the minor in emergency situations and mother is in town.

11 **B. Findings and Order**

- 12 1) This court has jurisdiction to make child custody orders in this case under the Uniform Child
13 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
14 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
15 child(ren) is the United States.
- 16 2) **Custody:** The Parents shall have joint legal and physical custody of their child Charlotte
17 (Charlie) Namesny.
- 18 3) **Educational Expenses:** The Father agrees to pay for all the private school expenses for the
19 school year of 2025-2026 if he is unable to continue to pay these expenses, he will notify the
20 Mother by the end of the school year.
- 21 4) **Tax Claim:** The Parents shall alternate the tax claim for the child. If the Father claimed the child
22 on his taxes for 2025, then the Mother shall be allowed to claim the child on her taxes for 2026.
- 23 5) **Child Care During Parenting Time and Emergency Childcare:** If either the father or mother
24 is unable to care for the minor child during their parenting time, each parent shall assist the other
25 parent in caring for the child, if they are able, and if they are unable to care for the child, they
26 shall assist the parent in vetting a nanny, at that unavailable parent's expense. Mother shall be
27 reasonably flexible with her work schedule, when possible, if father is unavailable to care for the
28 minor in emergency situations and mother is in town.
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- 1 6) **Travel and Passport:** Both parents shall cooperate in renewing the minor's passport. Unless the
2 parents can agree who shall be the holder of the child's passport, the passport shall be held by
3 Family Court Services (FCS). FCS shall hold the minor child's passport when neither parent is
4 traveling internationally. If either parent will be traveling internationally pursuant to a Court order
5 or written agreement of the parties, either parent may contact FCS up to two weeks in advance to
6 retrieve the passport. The passport must be returned to FCS within two weeks of returning from
7 an international trip with the child. With the written consent of the other parent, either parent may
8 travel internationally with the minor and shall provide the other parent with all travel details,
9 including flight information, no later than ninety (90) days prior to departure.
- 10 7) **The parties are ordered to appear to address the following issues: (a) parenting schedule**
11 **and monthly schedule and (b) Winter and Summer Break. The parties may appear in**
12 **person in Department 404 or remotely by Zoom Video. If party chooses to appear by video,**
13 **that party must abide by the Notice and Instructions for Remote Appearance in San**
14 **Francisco Family Court set forth above.**
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